

nephew," &c., and he laid it down broadly that "every child except the *heir* is considered a younger, and that *eldership* which does not carry the *estate* along with it is not such an eldership as will exclude from sharing in the portions." From this judgment may be inferred the principle that where the settlor (whether a parent, or standing in *loco parentis*, or a *stranger*) settles an estate upon a particular family, and means to provide for all the family by limiting the estate to one and portions to the others, there no one of them shall under the same settlement take the estate and a portion also, but in such cases the Court will, if necessary, disregard the strictly literal meaning of the words eldest and younger, and carry out the substantial intention.

9. **General rule.**— This point however remains to be settled, and the only general rule to be laid down at present is that where the settlor is the parent or stands *loco parentis*, and portions are provided for younger children, and the estate upon which the portions are charged devolves (before the time for distribution of the portions) on one of the children, under the same settlement or under a settlement incorporated into it (*b*), there the words "eldest child" and "younger children" are capable of what has been called "a prodigious latitude of construction," viz., an eldest may be treated as a younger, and a younger as an eldest; but that where portions are provided for younger children, and the estate either does not devolve before the time for distribution of the portions on any of the children, or does not so devolve under the settlement creating the charge or a settlement incorporated in it by recital or otherwise, there the words "eldest child" and "younger children" receive their ordinary and natural interpretation.

Secondly. Who are meant by younger children where the estate charged is not settled on an "eldest" son.

1. **Where no one is made an eldest son.**— We now proceed to the cases where a settlor provides portions for younger children generally, without the ingredient that one [*393] is * to take the estate and the others to have the

(b) See *Stanhope v. Collingwood*, 4 L. R. Eq. 286; *Collingwood v. Stanhope*, 4 L. R. H. L. 43.